EPA Compliance Assistance Workshops Don’t Reduce Violations

Lessons from “The Effect of Compliance Assistance on Pollution Discharges and Violations of Environmental Regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026.

Offering polluting facilities free help to follow the rules doesn’t make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance assistance workshops found the workshops didn’t reduce violations.

BACKGROUND

Environmental enforcement in the U.S. has long centered on inspecting facilities, catching violations, and levying fines. **Compliance assistance** takes a different approach: regulators aim to measurably reduce regulatory violations by providing facilities with free workshops, technical publications, and other support. The idea is that many violations stem from confusion or limited expertise rather than deliberate corner-cutting. Compliance assistance has become a prominent alternative to enforcement action at the Environmental Protection Agency (EPA), which is what the Ohio EPA used when it offered free workshops to wastewater treatment facilities in the state.

The program was designed with potential expansion to other states in mind, but the effectiveness of the workshops was only evaluated by looking at a before-and-after comparison of violation rates. In a new study, Ferraro & Shimshack set out to further explore the effectiveness of compliance assistance, using data on hundreds of wastewater treatment facilities that participated in the Ohio program. Facilities that had recently been cited for violations were invited to participate in the workshops, which were rolled out over several months. Despite the promising before-and-after results, **Ferraro & Shimshack found that the workshops had no measurable effect on either violations or pollution discharges.**

THE WORKSHOPS’ EFFECT ON VIOLATIONS, MONTH BY MONTH

Source: Ferraro & Shimshack (2026).

Note: This figure only includes facilities that attended a workshop. The month a facility was trained sets its zero line, so each dot shows whether it had more or fewer violations in a given month than it did in that training month. The estimates set aside each facility’s usual violation rate, the local weather, and any swings shared across the industry; the shaded band shows the range of statistical uncertainty. If the workshops worked, the line would drop below zero after the workshop. It doesn’t: in every month afterward, the band still includes “no change.”

HOW THE STUDY TESTED IT

Evaluating whether a policy works is hard: there is no way to see what facilities would have done without it. Comparing violations at trained facilities before and after the workshops would credit the training with whatever else was happening at the same time. Comparing facilities that signed up against those that didn't runs into a different problem: the workshops were voluntary, so a gap between the two groups could reflect the *motivation* of the facilities that signed up rather than anything the training did.

Ferraro & Shimshack got around this by comparing facilities trained earlier against ones that had *also* signed up but had not yet been trained. Those facilities were just as motivated and they were tracked over the same months, so any trend running through the industry showed up in both groups equally. The staggered rollout is what made those not-yet-trained facilities available as a fair benchmark. That benchmark holds only if the not-yet-trained facilities really would have followed the same path as the trained ones, which is something Ferraro & Shimshack have to assume.

The figure asks a narrower question of the same facilities: once those industry-wide trends are stripped out, did anything change in the months around a facility's own training?

WHAT THE STUDY FOUND

Ferraro & Shimshack found that **trained facilities were no less likely to violate than facilities that had not yet been trained.**

The same was true of pollution itself. A violation is a regulatory category, and a facility can be cited without much changing in the water. So Ferraro & Shimshack also tracked what the plants actually discharged each month, across five pollutants. Those didn't move either. The workshops changed neither what facilities reported nor what they released into the water.

Judged only on the facilities that attended, the program appears to be a triumph: violations at those plants fell by about half in the years after the workshops. The catch is that **violations fell just as far at the facilities that had signed up but hadn't been trained yet** — the decline was already underway, and the workshops added nothing to it. A facility that spent a day in a workshop went on to break its permit about as often as it would have if it had never shown up.

Compliance assistance rests on the idea that facilities break the rules because they don't fully understand them. For these wastewater plants, that wasn't the case: they look less like confused actors waiting for help than ones weighing whether compliance is worth it. That calculation is what inspections and penalties act on, and they have a track record of reducing violations. **The study suggests that these workshops do not.**

FOR MORE INFORMATION

Ferraro, Paul J., and Jay P. Shimshack. 2026. "The Effect of Compliance Assistance on Pollution Discharges and Violations of Environmental Regulations." *Journal of Policy Analysis and Management* 45 (3): e70056. doi.org/10.1002/pam.70056.

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